

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2010-004321

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF CARRIE
PAYNE, LPC, LICENSE NO. 2919,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners ("Board") and Carrie Payne, LPC, ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of case number 2010-004321 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2010-004321. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent had an unscheduled meeting at client's home..
5. By virtue of the fact admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated § 12-43-222(1) (g), C.R.S.

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MENTAL HEALTH BOARD

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Board hereby admonishes Respondent for a violation of §12-43-222(1)(g), C.R.S. This Order is effective as a Letter of Admonition, as set forth in §12-43-224(3)(d), C.R.S.

8. As part of the Admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

9. Prior to August 31, 2013, Respondent must successfully complete at least forty (40) hours of Board-approved professional continuing education courses in the areas of client boundaries, record-keeping and confidentiality. **Respondent shall obtain Board approval of the courses prior to enrolling in each course.** Upon completion of a course, Respondent shall ensure that a certificate of completion is mailed to the Board.

TERMS AND CONDITIONS

10. Respondent will strictly observe the prohibitions set forth in §12-43-222(1), C.R.S., of the Mental Health Practice Act, and will ensure that she practices in accordance with the generally accepted standards of practice.

11. All expenses incurred or associated with continuing education or any other requirement necessary to fulfill the terms of this Order shall be the sole responsibility of Respondent and not the Board.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

15. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to

the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. Respondent shall obey all municipal, state, and federal laws while this Order is in effect.

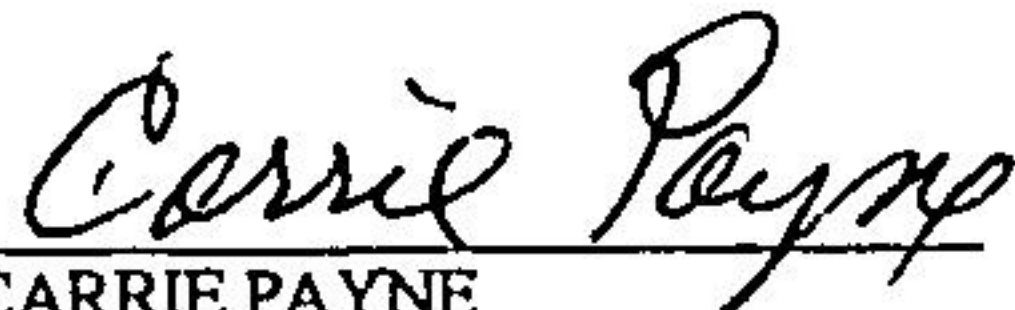
17. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective when accepted and signed on behalf of the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

RESPONDENT


CARRIE PAYNE

Dated: July 10, 2012

**STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS**


RONNE M. HINES

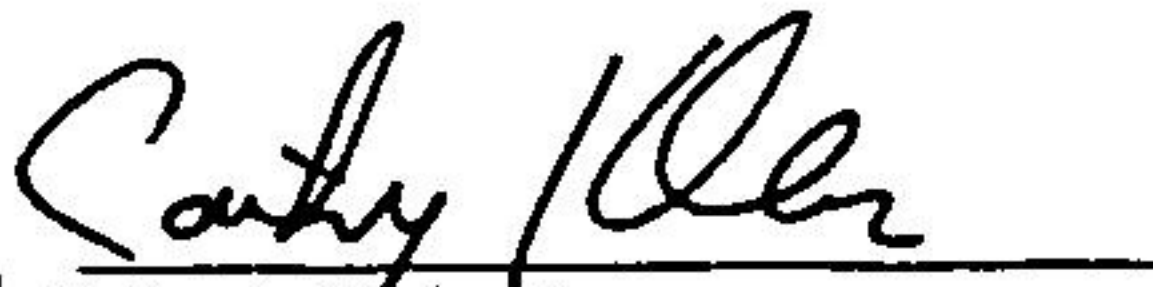
Program Director for the Board

Effective Date: This 3rd day of

August, 2012.

APPROVED AS TO FORM:

FOR RESPONDENT



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